

25STCV01127 25STCV01127

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV01127 Hearing Date: July 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 24, 2026

Case Name: Hartley, et al. v. Living Dead Media, et al.

Case No.: 25STCV01127

Matter: Default Judgment Application

Ruling: The Default Judgment Application is denied without prejudice.

Cross-Complainant Living Dead Media seeks a default judgment against Dragon Studios and Richard Driscoll for damages in the amount of \$1.8 million.

While Living Dead Media requests \$1.8 million in damages, the Cross-Complaint does not make any specific reference to damages. This is problematic as “[t]he relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115” (Code Civ. Proc. § 580.) “A demand for ‘damages according to proof’ is insufficient; such a demand does not provide adequate notice to sustain a default judgment.” (Yu v. Liberty Surplus Ins. Corp. (2018) 30 Cal.App.5th 1024, 1027.) Further, phrases such as “in an amount not less than” do not give notice for the purposes of Code Civ. Proc. § 580. (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1173-1174.) Code Civ. Proc. § 580 applies even when a defendant has defaulted after having filed an answer and having participated in discovery. (See Greenup v. Rodman (1986) 42 Cal.3d 822, 828; Elec. Funds Sols., LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1175.)

Thus, Cross-Complainant can either accept the jurisdictional minimum of \$35,001 or else amend the Cross-complaint's allegations as to damages, which would be a material change opening Cross-Defendants' defaults. (Cole v. Roebling Const. Co. (1909) 156 Cal. 443; Leo v. Dunlap (1968) 260 Cal.App.2d 24, 27-28.)

There is also no filing explaining the propriety of multiple judgments.

Accordingly, the Default Judgment Application is denied without prejudice.